

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

1. AMANDA ALESSANDRO V. JEREMY ALESSANDRO

PFL20200677

On December 23, 2025, Respondent filed a Request for Order (RFO) seeking an order regarding the division of community property. He filed his Income and Expense Declaration concurrently therewith. The RFO, the Income and Expense Declaration and the Notice of Tentative Ruling were personally served on Petitioner the same day as filing.

A hearing on the RFO was scheduled to take place on the present date. Additionally, this matter was scheduled for a five-year dismissal hearing on January 16, 2026. No one appeared at the hearing. The court noted the pending RFO hearing and continued the five-year dismissal hearing to join with the hearing on the RFO.

Petitioner filed her Responsive Declaration to Request for Order on February 17, 2026. It was served on the 16th. She did not file an Income and Expense Declaration.

Respondent filed and served a Supplemental Declaration on March 19th. The court deems this to be a Reply Declaration.

The parties are ordered to appear for the hearing on all issues.

TENTATIVE RULING #1: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING ON ALL ISSUES.

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2. KAYLA BURGESS V. KYLE BURGESS

23FL0919

On December 26, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 20, 2026.

There is no Proof of Service for the RFO or the CCRC referral and only Petitioner attended the scheduled CCRC appointment.

On February 2, 2026, Respondent filed Respondent's Supplemental Declaration Re: Child Custody Recommending Counseling. It was served on January 28th.

Respondent filed a Responsive Declaration to Request for Order on March 9th. It was served on March 6th.

After reviewing the filings by Respondent, it does appear that he has actual knowledge of the RFO and the CCRC referral and he is not objecting to service, therefore the court finds any potential defect in service was waived and the matter may be reached on the merits.

The parties are re-referred to CCRC with an appointment on Thursday April 23rd at 9:00 am. A review hearing is set for Thursday June 18th at 8:30 am in Department 5. The issues raised in the RFO are continued to join with the CCRC review hearing. The parties are ordered to file and serve Supplemental Declarations no later than 10 days prior to the review hearing.

TENTATIVE RULING #2: THE PARTIES ARE RE-REFERRED TO CCRC WITH AN APPOINTMENT ON THURSDAY APRIL 23RD AT 9:00 AM. A REVIEW HEARING IS SET FOR THURSDAY JUNE 18TH AT 8:30 AM IN DEPARTMENT 5. THE ISSUES RAISED IN THE RFO ARE CONTINUED TO JOIN WITH THE CCRC REVIEW HEARING. THE PARTIES ARE ORDERED TO FILE AND SERVE SUPPLEMENTAL DECLARATIONS NO LATER THAN 10 DAYS PRIOR TO THE REVIEW HEARING.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

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**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**

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3. RYAN HAYNES V. SONYA LOSSIUS

PFL20210153

On December 30, 2025, the parties attended a hearing on the request for a Domestic Violence Restraining Order (DVRO) filed by Respondent. The DVRO was granted for five years with Respondent and the children as the protected persons. The parties were referred to Child Custody Recommending Counseling (CCRC) for custody orders and a review hearing was set for the present date.

Only Respondent participated in CCRC therefore CCRC was unable to make any recommendations.

The court is maintaining the custody and visitation orders as set forth in the DVRO.

TENTATIVE RULING #3: THE COURT IS MAINTAINING THE CUSTODY AND VISITATION ORDERS AS SET FORTH IN THE DVRO.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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4. KELLY HESKETT V. JACOB HESKETT

25FL0732

On November 19, 2025, Counsel for Petitioner filed a Notice of Motion and Motion to be Relieved as Counsel. Petitioner was served with all required documents on December 11, 2025. The matter was originally set to be heard on February 19th, however the court noted that Respondent had not been served with the moving papers. The matter was continued to allow time for Respondent to be served.

On February 27th Petitioner was served with a Notice of Motion containing the new hearing date. Respondent was served on March 2nd.

Petitioner filed a Responsive Declaration to Request for Order on March 9th. It was served on March 10th.

Counsel states that there has been an irreparable breakdown of the attorney-client relationship. After reviewing the filings, it does appear that there has been a breakdown in the relationship rendering effective representation unlikely. The request is granted. Withdrawal will be effective as of the date of filing the Proof of Service of the formal, signed order upon the client.

TENTATIVE RULING #4: THE MOTION TO BE RELIEVED AS COUNSEL IS GRANTED. WITHDRAWAL WILL BE EFFECTIVE AS OF THE DATE OF FILING PROOF OF SERVICE OF THE FORMAL, SIGNED ORDER UPON THE CLIENT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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5. MATTHEW HICKS V. TIFFINE CHRISTINE WOODSIDE

22FL0345

On January 12, 2026, Minor's Counsel filed a Request for Order (RFO) seeking custody and visitation orders. The RFO and the Notice of Tentative Ruling were both served on Respondent on January 14th and on Petitioner on January 23rd.

Petitioner filed a Responsive Declaration to Request for Order on March 11th. There is no Proof of Service for this document therefore the court has not read or considered it.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure "as an admission that the motion or other application is meritorious." El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Respondent. She had notice of the pending request, and chose not to file an opposition. As such, the court finds good cause to treat her failure to do so as an admission that she is of the opinion that the claims made in the RFO are meritorious.

Minor's Counsel seeks an order allowing Respondent to move to Montana with the minor. She further requests an order allowing the child to hyphenate his last name to add Respondent's last name.

The request to change the child's last name is granted. The child may change his last name to hyphenate and add Mother's last name.

The parties are ordered to appear to select trial and Mandatory Settlement Conference dates on the move-away request.

Minor's Counsel is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #5: THE REQUEST TO CHANGE THE CHILD'S LAST NAME IS GRANTED. THE CHILD MAY CHANGE HIS LAST NAME TO HYPHENATE AND ADD MOTHER'S LAST NAME.

THE PARTIES ARE ORDERED TO APPEAR TO SELECT TRIAL AND MANDATORY SETTLEMENT CONFERENCE DATES ON THE MOVE-AWAY REQUEST.

MINOR'S COUNSEL IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON

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THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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6. DEBRA KACZOR V. ROBERT KACZOR

PFL20100757

On January 15, 2026, Petitioner filed a Request for Order (RFO) seeking an order for spousal support arrears. This is a post-judgment request and as such the RFO and all other documents were personally served on January 13th and again on February 5th. Petitioner has not filed an Income and Expense Declaration.

Respondent filed a Responsive Declaration to Request for Order and an additional Declaration on March 13, 2026. Both were served on February 25th. Respondent has not filed an Income and Expense Declaration.

Petitioner is requesting spousal support arrears in the amount of \$17,500. Respondent states he was unaware that the payments were not being made and he is ready and willing to begin making the payments again but Petitioner has not responded to his attempts to contact her.

The parties are ordered to appear for the hearing.

TENTATIVE RULING #6: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

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7. DUNIA LANDAVERDE V. ANGEL LANDAVERDE

23FL0394

On January 14, 2026, Petitioner filed a Request for Order (RFO) seeking a variety of orders. The RFO was served on January 22nd.

Respondent filed and served a Responsive Declaration to Request for Order on January 23rd. He filed a second Responsive Declaration to Request for Order along with his Income and Expense Declaration on March 6th.

On February 11, 2026, Respondent filed an RFO seeking attorney's fees and costs. It was served on February 12th.

Petitioner is requesting an order granting her temporary exclusive use, possession, and control of the 2017 Toyota Tacoma. She also requests guideline spousal and child support and orders regarding uninsured medical expenses and any additional orders the court deems necessary. She is also asking the court to make orders precluding the children from traveling outside of the country without the prior written consent of the other party; and an order for the return of the children's passports to her. Finally, she requests \$5,000 in need-based attorney's fees.

Respondent requests guideline spousal and child support payable to him. He asks that the court reserve jurisdiction on the issue of arrears. Additionally, he opposes the request for attorney's fees and asks that fees be awarded to him in the amount of \$1,950 pursuant to Family Code § 6344 based on the Request for Domestic Violence Restraining Order (DVRO) which was filed by Petitioner but was never served and was ultimately dismissed. Regarding the request for consent to out-of-country travel, Respondent notes that on December 11, 2025, the court adopted CCRC recommendations which included an order for the parties to approve any out-of-country travel by the children. Finally, Respondent requests sanctions in the amount of \$750 but does not specify the basis for this request.

Regarding the request for the 2017 Toyota Tacoma, the court is maintaining its ex parte order awarding Petitioner possession of the BMW.

The request regarding consent for out-of-country travel is granted. All prior orders regarding travel with the children remain in full force and effect. In addition to those orders, the court is requiring the traveling party to obtain the prior written consent of the other party before the traveling party may leave the country with the children. The non-traveling party may not unreasonably withhold his or her consent.

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The request for possession of the children's passports is denied. Petitioner has failed to establish how such an order would be in the best interests of the children at this time.

Given the recent termination of Respondent's employment due to the allegations made by Petitioner, the court is ordering support payable by Petitioner to Respondent. Utilizing the figures outlined in the attached Xspouse report the court finds that spousal support per the Alameda formula is \$619 per month and child support is \$987 per month. The court adopts the attached Xspouse report and orders Petitioner to pay Respondent \$1,606 per month as and for child support and temporary spousal support, payable on the 1st of the month until further order of the court or legal termination. This order is effective as of March 1, 2026.

The court is reserving jurisdiction over arrears until the time of trial.

Turning to Petitioner's request for attorney's fees, the request is denied. In the face of a request for attorney's fees and costs under Family Code § 2030, the court is to make findings on "whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties." Fam. Code § 2030(a)(2). Here, Respondent was recently terminated from his employment. As such, the court does not find that he has the ability to pay and therefore Petitioner's request for need-based attorney's fees is denied.

Turning to the request for attorney's fees made by Respondent, his request is pursuant to Family Code § 6344. Family Code section 6344 is the mechanism by which a prevailing party on a DVRO request may recover their attorney's fees and costs. If the prevailing party was the party that defended against the DVRO the court "may" issue an order for the payment of attorney's fees "only if the respondent establishes by a preponderance of the evidence that the petition or request is frivolous or solely intended to abuse, intimidate, or cause unnecessary delay." Fam. Code § 6344(b). However, "[b]efore a court awards attorney's fees and costs pursuant to this section, the court shall first determine pursuant to Section 270 that the party ordered to pay has, or is reasonably likely to have, the ability to pay." *Id.* at (c).

In this matter the request for a DVRO was filed by Petitioner just before the initial custody hearing. The court denied a temporary DVRO and Petitioner never served her moving papers so her request was ultimately denied. The District Attorney has not filed charges based on Petitioner's claim and Petitioner did not identify any acts of physical

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abuse during CCRC. Given the surrounding circumstances, it does appear that the DVRO request may have been filed solely with the intent to cause unnecessary delay in the custody proceedings. That said, Petitioner is being ordered to pay support to Respondent and she must continue to support herself and the children. Under the circumstances, the court does not find that Petitioner has the ability to pay the attorney's fees requested. The request is therefore denied.

Finally, Respondent's request for sanctions against Petitioner is denied as Respondent has failed to cite any legal basis for the requested sanctions nor made any argument in that regard.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: REGARDING THE REQUEST FOR THE 2017 TOYOTA TACOMA, THE COURT IS MAINTAINING ITS EX PARTE ORDER AWARDING PETITIONER POSSESSION OF THE BMW.

THE REQUEST REGARDING CONSENT FOR OUT-OF-COUNTRY TRAVEL IS GRANTED. ALL PRIOR ORDERS REGARDING TRAVEL WITH THE CHILDREN REMAIN IN FULL FORCE AND EFFECT. IN ADDITION TO THOSE ORDERS, THE COURT IS REQUIRING THE TRAVELING PARTY TO OBTAIN THE PRIOR WRITTEN CONSENT OF THE OTHER PARTY BEFORE THE TRAVELING PARTY MAY LEAVE THE COUNTRY WITH THE CHILDREN. THE NON-TRAVELING PARTY MAY NOT UNREASONABLY WITHHOLD HIS OR HER CONSENT.

THE REQUEST FOR POSSESSION OF THE CHILDREN'S PASSPORTS IS DENIED. PETITIONER HAS FAILED TO ESTABLISH HOW SUCH AN ORDER WOULD BE IN THE BEST INTERESTS OF THE CHILDREN AT THIS TIME.

THE COURT IS ORDERING SUPPORT PAYABLE BY PETITIONER TO RESPONDENT. UTILIZING THE FIGURES OUTLINED IN THE ATTACHED XSPOUSE REPORT THE COURT FINDS THAT SPOUSAL SUPPORT PER THE ALAMEDA FORMULA IS \$619 PER MONTH AND CHILD SUPPORT IS \$987 PER MONTH. THE COURT ADOPTS THE ATTACHED XSPOUSE REPORT AND ORDERS PETITIONER TO PAY RESPONDENT \$1,606 PER MONTH AS AND FOR CHILD SUPPORT AND TEMPORARY SPOUSAL SUPPORT, PAYABLE ON THE 1ST OF THE MONTH UNTIL FURTHER ORDER OF THE COURT OR LEGAL TERMINATION. THIS ORDER IS EFFECTIVE AS OF MARCH 1, 2026.

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THE COURT IS RESERVING JURISDICTION OVER ARREARS UNTIL THE TIME OF TRIAL.

TURNING TO PETITIONER'S REQUEST FOR ATTORNEY'S FEES, THE REQUEST IS DENIED. THE COURT DOES NOT FIND THAT RESPONDENT HAS THE ABILITY TO PAY.

TURNING TO THE REQUEST FOR ATTORNEY'S FEES MADE BY RESPONDENT, THE COURT FINDS THAT PETITIONER DOES NOT HAVE THE ABILITY TO PAY AND THEREFORE THE REQUEST IS DENIED.

FINALLY, RESPONDENT'S REQUEST FOR SANCTIONS AGAINST PETITIONER IS DENIED AS RESPONDENT HAS FAILED TO CITE ANY LEGAL BASIS FOR THE REQUESTED SANCTIONS NOR MADE ANY ARGUMENT IN THAT REGARD.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

Fixed Shares	Father	Mother	Monthly figures	Cash Flow		
#of children	0	2	2026		Guideline	Proposed
	49.99 %	0.00 %		Comb. net spendable	3743	3743
	SINGLE	HH/MLA	GUIDELINE	Percent change	0%	0%
	1 *	3 *	Nets(adjusted)	Father		
	0	3613	Father	0		
	0	0	Mother	3743	Payment cost/benefit	1606
	0	0	Total	3743	Net spendable income	1606
	0	0	Support		Change from guideline	0
	0	0	Addons	0	% of combined spendable	43%
	0	0	Guideln CS	987	% of saving over guideline	0%
	0	0	Alameda SS	619	Total taxes	0
	0	0	Total	1606	Dep. exemption value	0
	0	0	-		# withholding allowances	0
	0	0			Net wage paycheck	0
	0	0		Mother		
	0	0		Payment cost/benefit	-1606	-1606
	0	0		Net spendable income	2137	2137
	0	0	Proposed	Change from guideline	0	0
	0	0	Tactic 9	% of combined spendable	57%	57%
	0	0	CS	987	% of saving over guideline	0%
	0	0	SS	619	Total taxes	-166
	0	36	Total	1606	Dep. exemption value	0
	0	0			# withholding allowances	0
	0 *	0 *	Saving	0	Net wage paycheck	2993
	0	0	Releases	0		2993
	0	0				

Mother pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information

	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	49 - 51	0	0	0	Father	987	Mother	987	Mother
	49 - 51	0	0	0	Father	448	Mother	448	Mother
	49 - 51	0	0	0	Father	539	Mother	539	Mother

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10. DANIEL J. RUSSELL V. ELIZABETH A. RUSSELL

PFL20200387

On December 30, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders and child support. He filed his Income and Expense Declaration concurrently therewith. There is no Proof of Service for either document.

On January 6, 2026, the Central Sierra Child Support Agency filed a Notice Regarding Payment of Support: Substitution of Payee.

Respondent filed and served her Responsive Declaration to Request for Order on March 13, 2026. She did not file or serve an Income and Expense Declaration.

Petitioner is requesting custody and visitation orders but he does not specify exactly what he is asking the court to order. He is also asking the court to make child support orders but again, he does not specify what exactly he wants ordered.

The request for child support is dropped from calendar due to Petitioner's failure to serve the child support services agency which has substituted in as payee.

Regarding the requested custody orders, due to the ambiguity in Petitioner's moving papers, the court cannot find that the requested orders are in the best interests of the minors when the court doesn't know what is being requested. Accordingly, the RFO is denied.

All prior orders remain in full force and effect.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #10: THE REQUEST FOR CHILD SUPPORT IS DROPPED FROM CALENDAR DUE TO PETITIONER'S FAILURE TO SERVE THE CHILD SUPPORT SERVICES AGENCY WHICH HAS SUBSTITUTED IN AS PAYEE. THE REQUESTED CUSTODY ORDERS ARE DENIED. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR

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12. JESSICA GAIL SPEARS V. BRIAN DAVID SPEARS

PFL20190720

On January 12, 2026, Respondent filed a Request for Order (RFO) to end spousal support. He filed a Declaration of Respondent and his Income and Expense Declaration concurrently therewith.

There is no Proof of Service for the moving papers, however Petitioner filed and served her Responsive Declaration to Request for Order on March 9th thereby waiving any defect in service. She filed her Income and Expense Declaration and her Memorandum of Points and Authorities concurrently therewith.

This is a post-judgment request to modify spousal support orders and as such the court is required to take evidence on, and address, the Family Code § 4320 factors. The parties are ordered to appear to select trial and Mandatory Settlement Conference dates.

TENTATIVE RULING #12: THE PARTIES ARE ORDERED TO APPEAR TO SELECT TRIAL AND MANDATORY SETTLEMENT CONFERENCE DATES.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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13. TODD STANLEY V. HANNAH COLE

24FL0221

On January 14, 2026, Petitioner filed a Request for Order seeking custody and visitation orders, a stay on proceedings, and “correction and clarification of the record.” On January 21st he filed another RFO, this time seeking reconsideration of the court’s prior orders. Both RFOs were served on March 3rd along with the Notice of Tentative Ruling and a blank FL-320.

Respondent filed an RFO on February 2nd seeking to have Petitioner deemed a vexatious litigant. The RFO and all other required documents were served on February 4th.

Respondent’s Objections to Declaration and Exhibits was filed and served on March 13th along with her Responsive Declaration to Request for Order.

On March 23rd, Petitioner filed a Supplemental Declaration of Todd Stanley in Support of Request for a Stay Pending Appeal and Reconsideration, and in Opposition to Objections, Motion to Strike and Vexatious Litigant Request. It is unclear to the court if this is intended to be a Responsive Declaration or a Reply Declaration; regardless, it is untimely. Civil Procedure section 1005(b) states all opposition papers are to be filed no later than nine court days prior to the hearing and all reply papers are to be filed at least five court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made March 13th the last day to file a Responsive Declaration and March 19th the last day to file a Reply declaration. Additionally, all Responsive Declarations are required to utilize the mandatory FL-320 form, which Petitioner has not done. For the foregoing reasons the court has not read or considered Petitioner’s March 23rd declaration.

Petitioner’s RFOs

Petitioner is requesting the following: (1) stay all relocation orders and enforcement dates pending appellate review of the December 29, 2025 order; alternatively, extend the January 29, 2026 relocation date to no earlier than May 7, 2026; (2) correct and clarify the record regarding issues affecting Family Code § 3044 and the court’s best interest findings; and (3) reconsider the court’s January 14, 2026 ruling denying Petitioner’s ex parte request.

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Respondent opposes the requests and asks that they be denied as res judicata. She further requests \$5,000 in attorney fees for having to respond to Petitioner's duplicative motion. She has submitted several objections the rulings on which are attached hereto.

First and foremost, the Motion for Reconsideration of the court's "ruling issued on January 14, 2026" is denied. On January 14th the court ruled on Petitioner's request for an Order Shortening Time (OST), it did not address custody or visitation. Moreover, the OST was requested on issues that are pending before the court for this hearing. As such, any motion to reconsider the court's denial of the OST is moot and therefore, denied.

Regarding the request to "correct and clarify the record" it is unclear exactly what Petitioner is requesting. Presumably he would like the court to consider the evidence he submitted in his declaration however, he does not ask the court to actually reconsider or vacate its prior ruling. Nevertheless, the court finds that all of the issues raised in Petitioner's RFO have already been ruled upon. Petitioner does not provide the court with any new or additional evidence that *could not* have been presented at trial or that has not already been considered by the court. As such, this request is denied.

Likewise, the request for a stay is denied. It is well settled law that "[t]he perfecting of an appeal shall not stay proceedings as to those provisions of a judgment or order which award, change, or otherwise affect the custody, including the right of visitation, of a minor child in any civil action..." Cal. Civ. Pro. § 917.7. The trial court maintains discretion over whether or not to stay such proceedings. *Id.* Here, the court does not find grounds to issue a stay on proceedings. This is especially in light of the fact that there was an automatic 30-day stay, which has already expired, and an additional 3-day stay issued by the appellate court. The court does not find grounds to further stay the proceedings. Accordingly, the request is denied.

Respondent's request for sanctions is granted. An award for attorney's fees and sanctions may be made pursuant to Family Code section 271 which states, in pertinent part, "...the court may base an award of attorney's fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys. An award of attorney's fees and costs pursuant to this section is in the nature of a sanction." Fam. Code § 271(a).

Here, Petitioner filed an RFO on January 12th, an amended RFO on January 12th, an Application for an Order Shortening Time on January 13th, an RFO on January 14th, an ex

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parte request on January 20th, and an RFO on January 21st. Most of these RFOs seek to litigate and re-litigate the same issues over and over again. Petitioner's repeated filings have unquestionably caused Respondent to incur unnecessary attorney's fees. Petitioner's actions fall squarely within the purview of Section 271 and as such the request for sanctions is granted. Petitioner is ordered to pay Respondent's attorney \$5,000 as and for sanctions pursuant to Family Code § 271. Payment may be made in one lump sum or in monthly increments of \$250 commencing on April 1, 2026 and continuing on the 1st of each month until paid in full. If any payment is missed or late the entire amount shall become immediately due and payable.

Vexatious Litigant

Respondent asks that Petitioner be declared a vexatious litigant. She further requests that all issues set for March 26th be continued to May 7th due to the unavailability of her counsel.

While Respondent concedes that a party represented by counsel cannot be deemed a vexatious litigant and she notes her belief that Petitioner was represented by counsel as of March 13th she is still seeking to have the court issue the vexatious litigant designation. The court's file does not reflect that Petitioner is currently represented. According to the Notice of Limited Scope Representation in the court's file, Ms. Bentley was retained by Petitioner only "up to and including the hearing set for 2/19/26." Additionally, even if he were represented as of today's date, all of the filings at issue were made by Petitioner as a pro se litigant and any vexatious litigant designation would apply to him only in his capacity as a pro se litigant. As such, the court does find grounds to proceed with the motion on the merits.

The purpose of the vexatious litigant statute is to curb the misuse of the judicial process by self-represented litigants who repeatedly file unmeritorious litigation, or motions, or who repeatedly attempt to relitigate issues that have already been decided by the court. Shalant v. Girardi, 51 Cal. App. 4th 1164 (2011). To be declared a vexatious litigant the self-represented party must meet at least one of four statutory definitions. These definitions include an individual who "...repeatedly relitigates or attempts to relitigate, in propria persona, either (1) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined;" or one who "repeatedly files unmeritorious motions, pleadings, or

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other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.” Cal. Civ. Pro. § 391(b)(2) & (b)(3). A finding of as few as three motions on the same issue has been upheld as grounds for a vexatious litigant ruling. Goodrich v. Sierra Vista Reg’l Med. Ctr., 246 Cal. App. 4th 1260 (2016).

Given the sheer number of motions filed by Petitioner within the last year, almost all of which have been found to be without merit, Petitioner’s actions are clearly those of a vexatious litigant. In fact, on October 23, 2025, the court advised Petitioner to refrain from filing further baseless motions. Nevertheless, as it stands today Petitioner has filed 7 RFOs in the past year, most of which were filed on an ex parte basis and almost all of which have been denied. He also filed a request for a Domestic Violence Restraining Order which was denied and was seemingly filed solely to affect the court’s custody rulings. In light of Petitioner’s repeated requests to litigate the same issues without any legal basis to do so, his misuse of the ex parte process, and his continual filing of meritless RFOs, it stands to reason that Petitioner is misusing the litigation process and therefore a vexatious litigant designation is proper.

Petitioner is hereby deemed a vexatious litigant. Petitioner is prohibited from making any in propria persona filing of any new litigation, petition, application, or motion in the State of California without first obtaining leave of the presiding justice where the litigation is proposed to be filed. Disobedience of this order may be punishable by contempt of court.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #13: THE COURT’S RULINGS ON RESPONDENT’S OBJECTIONS ARE ATTACHED HERETO. PETITIONER’S JANUARY 14TH RFO AND HIS JANUARY 21ST RFO ARE BOTH DENIED IN THEIR ENTIRETY.

RESPONDENT’S REQUEST FOR SANCTIONS IS GRANTED. PETITIONER IS ORDERED TO PAY RESPONDENT’S ATTORNEY \$5,000 AS AND FOR SANCTIONS PURSUANT TO FAMILY CODE § 271. PAYMENT MAY BE MADE IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$250 COMMENCING ON APRIL 1, 2026 AND CONTINUING ON THE 1ST OF EACH MONTH UNTIL PAID IN FULL. IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE.

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PETITIONER IS HEREBY DEEMED A VEXATIOUS LITIGANT. PETITIONER IS PROHIBITED FROM MAKING ANY IN PROPRIA PERSONA FILING OF ANY NEW LITIGATION, PETITION, APPLICATION, OR MOTION IN THE STATE OF CALIFORNIA WITHOUT FIRST OBTAINING LEAVE OF THE PRESIDING JUSTICE WHERE THE LITIGATION IS PROPOSED TO BE FILED. DISOBEDIENCE OF THIS ORDER MAY BE PUNISHABLE BY CONTEMPT OF COURT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

1 “PETITIONER’S MOTION FOR STAY OF RELOCATION PENDING APPEAL” beginning on
2 page 1 of the drafted pleading:

- 3 1. Page 1, lines 19-21: Objection and move to strike as hearsay (EC¹ §1200), lack of
4 foundation (EC §403), and assumes facts not in evidence: “In light of law-
5 enforcement and CPS findings of no risk, neutral supervised-visitation reports
6 documenting safe, appropriate contact, and Respondent’s September 16, 2025
7 Utah conviction for child-abuse-related conduct against the parties’ son...”

8 a. Objection X SUSTAINED OVERRULED

- 9 2. Page 3, lines 6-8: Objection and move to strike as hearsay (EC §1200), lack of
10 foundation (EC §403), and assumes facts not in evidence: “Dr. Davis paused the
11 evaluation – in direct response to the unresolved conflict issues and the
12 problematic stipulation that Petitioner had been forced to sign under duress, nor
13 primarily due to “scope and ability-to-pay concerns.””

14 a. Objection X SUSTAINED OVERRULED

- 15 3. Page 4, lines 2-6: Objection and move to strike as hearsay (EC §1200), assumes
16 facts not in evidence, lack of foundation (EC §403), and misstates the testimony
17 and record from trial, the entire paragraph starting with “At the December 15-17,
18 2025 trial...”.

19 a. Objection SUSTAINED X OVERRULED

- 20 4. Page 4, lines 13-15: Objection and move to strike as hearsay (EC §1200), assumes
21 facts not in evidence, lack of foundation (EC §403), and misstates the testimony

22
23
24
25
26
27 ¹ Citations noted as “EC” are to the Evidence Code.

1 and record from trial the statements starting with “These findings are contrary ...”
2 and ending with “... deemed unnecessary.”

3 a. Objection X SUSTAINED OVERRULED

4
5 5. Page 4, lines 25-28, and Page 5, lines 1-2: Objection and move to strike as hearsay
6 (EC §1200), lack of foundation (EC §403), and assumes facts not in evidence, the
7 entire paragraph starting with “At the same time...”

8 a. Objection SUSTAINED X OVERRULED

9
10 6. Page 5, lines 18-22: Objection and move to strike as hearsay (EC §1200), lack of
11 foundation (EC §403), and assumes facts not in evidence the entire paragraph
12 starting with “Criminal proceedings...”

13 a. Objection X SUSTAINED OVERRULED

14
15 7. Page 8, lines 5-7: Objection and move to strike as hearsay (EC §1200), lack of
16 foundation (EC §403), and assumes facts not in evidence the statements starting
17 with “Criminal proceedings” and ending with “Family Code sections 3020 and
18 3044”.

19 a. Objection SUSTAINED X OVERRULED

20
21 8. Page 8, lines 9-10: Objection and move to strike as hearsay (EC §1200), and lack
22 of foundation (EC §403) the statement starting with “On September 9, 2025”, and
23 ending with “ability-to-pay concerns”.

24 a. Objection X SUSTAINED OVERRULED

25
26 9. Page 8, lines 15 -16: Objection and move to strike as hearsay (EC §1200), lack of
27 foundation (EC §403), and misstates the testimony at trial the statements starting

1 with "At the December 15-17, 2025 trial", and ending with "...ongoing
2 investigation".

3 a. Objection _____ SUSTAINED X OVERRULED

4 10. Page 8, lines 20-21: Objection and move to strike as hearsay (EC §1200) and lack
5 of foundation the statement (EC §403) "Deputy McLean's email".

6 a. Objection X SUSTAINED _____ OVERRULED

7 11. Page 8, lines 22-23: Objection and move to strike as hearsay (EC §1200) and lack
8 of foundation (EC §403) the statement starting with "Recent supervised-visitation
9 reports" and ending in "...safety concerns."

10 a. Objection X SUSTAINED _____ OVERRULED

11 12. Exhibit A: Objection and move to strike as hearsay (EC §1200) and lacks
12 authentication (EC §§1400-1401).

13 a. Objection X SUSTAINED _____ OVERRULED

14 13. Exhibit C: Objection to characterization of contents of email as improper narrative;
15 the email speaks for itself.

16 a. Objection X SUSTAINED _____ OVERRULED

17 14. Exhibit G: Objection and move to strike as hearsay (EC §1200) and lacks
18 authentication (EC §§1400-1401).

19 a. Objection _____ SUSTAINED X OVERRULED

20 15. Exhibit I: Objection and move to strike as hearsay (EC §1200).

21 a. Objection _____ SUSTAINED X OVERRULED

1 16. Exhibit J: Objection and move to strike as improper narrative, assumes facts not in
2 evidence.

3 a. Objection _____ SUSTAINED X OVERRULED

4 17. Exhibit L: Objection and move to strike as hearsay (EC §1200).

5 a. Objection X SUSTAINED _____ OVERRULED

6 18. Exhibit M: Objection and move to strike as hearsay (EC §1200) and lacks
7 authentication (EC §§1400-1401).

8 a. Objection _____ SUSTAINED X OVERRULED

9 19. Exhibit O: Objection and move to strike as improper narrative, assumes facts not
10 in evidence.

11 a. Objection _____ SUSTAINED X OVERRULED

12 20. Exhibit P: Objection and move to strike as hearsay (EC §1200).

13 a. Objection _____ SUSTAINED X OVERRULED

14
15
16 Evidence Code §1200 provides that hearsay is “evidence of a statement that was made
17 other than by a witness while testifying at the hearing and that is offered to prove the truth of the
18 matter stated” and is inadmissible. Though declaration or affidavit use is common in motion
19 practice, it is not a vehicle in which a party may seek to introduce evidence subject to objection as
20 a circumvention of the formal rules of evidence.² The court has found proper to sustain objections
21 to a party declaration that contains hearsay statements made by third-parties³, and requires
22 consideration of properly raised objections to such statements prior to consideration of the
23 evidence⁴.
24

25 _____
26 ² See Elkins v. Superior Court (2007) 41 Cal.4th 1337.

27 ³ Huntsman-West Foundation v. Smith (2024) 104 Cal.App.5th 1117.

⁴ Brown v. Goldstein (2019) 34 Cal.App.5th 418.

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14. ANNIE R. ADAMS V. CHARLES D. MEINTZ

25FL0677

On October 14, 2025, Petitioner filed a Request for Order (RFO) seeking spousal support and a variety of other orders. She filed her Income and Expense Declaration concurrently therewith. All required documents were served on October 17th.

A Judgment was entered on March 20, 2026. The court finds the RFO to be moot and as such, drops the matter from calendar.

TENTATIVE RULING #14: THE RFO IS MOOT AND AS SUCH, DROPPED FROM CALENDAR.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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15. KIMBERLY BRIMER V. STEVEN BRIMER

21FL0094

Petitioner filed a Request for Order (RFO) on January 15, 2026, seeking orders regarding communication between the parties. There is no Proof of Service showing Respondent was properly served.

The court drops the matter from calendar due to the lack of proper service.

TENTATIVE RULING #15: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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16. STANLEY DURAN, JR. V. ROSE DURAN

25FL0820

The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 8, 2026, and a review hearing on March 26, 2026, following the court issuing a permanent restraining order protecting Respondent.

Parties appeared at the CCRC appointment and reached agreements regarding custody and parenting time. The agreements appear to conflict with the orders issued in the DV-140, which themselves are contradictory. A report with the parties' agreements and recommendations was filed with the court on January 20, 2026, and mailed to the parties on January 22nd.

Petitioner filed an ex parte request for emergency orders on March 17, 2026. On March 18, 2026, the court granted an order shortening time, as the parties had a review hearing set for March 26th. Petitioner filed the Request for Order (RFO) on March 18, 2026. Respondent was served on March 19th. While the FL-300 states the hearing is set for March 26, 2026 at 1:30 PM in Department 8, that is a clerical error. The hearing is set in Department 5.

Parties are ordered to appear for the hearing in Department 5.

TENTATIVE RULING #16: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

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17. MELISSA FLANIGAN V. SHAUN FLANIGAN

23FL0255

On October 3, 2025, Petitioner filed a Request for Order (RFO) seeking modification of the custody and parenting plan orders as well as attorney's fees and sanctions. Respondent filed an Order Shortening Time and RFO seeking to compel and clarification of the current orders on November 14, 2025.

The parties were ordered to appear for hearing on both RFOs on December 4, 2025. The parties presented the court with an agreement which was accepted by the court and all issues were continued to the present date.

On November 26, 2025, Respondent filed an RFO for child custody, child visitation, child support, spousal support, and enforcement of the order for a vocational evaluation.

Respondent's Supplemental Declaration was filed and served on January 2, 2026. He filed another declaration on January 16th.

Petitioner filed a Responsive Declaration to Request for Order, a Supplemental Declaration, and an Income and Expense Declaration on January 20th.

Respondent's Reply Declaration, Memorandum of Points and Authorities, and another Reply Declaration were all filed and served on January 20th.

Respondent filed a Supplemental Declaration on February 23, 2026. It was electronically served on February 20th.

Respondent filed a further Declaration on February 26, 2026. It was electronically served on February 20th. The court notes the February 23rd and 26th declarations appear to be identical.

Respondent filed another Supplemental Declaration on February 13, 2026. It was served on the same day.

Petitioner filed a Supplemental Declaration on March 16, 2026. It was served the same day.

Respondent filed a Reply Declaration on March 17, 2026. It was served the same day.

The parties are ordered to appear for the hearing.

TENTATIVE RULING #17: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

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18. KEVIN WENTWORTH V. CHEYENNE FULLER

25FL1247

Petitioner filed a Request for Order (RFO) on December 29, 2025, seeking child custody and parenting plan orders, as well as an order for the child to obtain a passport. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 28, 2026, and a review hearing on March 26, 2026. Proof of Service shows Respondent was served with the FL-300 and a blank FL-320. However, there is no Proof of Service showing Respondent was served with the CCRC referral and other necessary forms.

Both parties attended CCRC and could not reach any agreements. A report with recommendations was filed with the court on March 4, 2026. Copies were mailed to the parties on March 5, 2026.

Petitioner filed a Declaration on December 29, 2025. There is no Proof of Service for this document, therefore, the court has not considered it.

Respondent has not filed a Responsive Declaration.

The court finds good cause to proceed, despite the defects in service, as Respondent appeared at CCRC and was served timely with the RFO and blank Responsive Declaration.

The court has read and considered the filings as outlined above. The court finds the recommendations as set forth in the CCRC report are in the best interest of the minor. The court adopts the recommendations as set forth in the March 4th CCRC report. As to Petitioner's request for the minor to obtain a passport, the court has ordered joint legal custody. As such, the parties must both sign the application for the passport. The court is directing the parties to work cooperatively to obtain a passport for the minor.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #18: THE COURT FINDS GOOD CAUSE TO PROCEED, DESPITE THE DEFECTS IN SERVICE, AS RESPONDENT APPEARED AT CCRC AND WAS SERVED TIMELY WITH THE RFO AND BLANK RESPONSIVE DECLARATION. THE COURT FINDS THE RECOMMENDATIONS AS SET FORTH IN THE CCRC REPORT ARE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE RECOMMENDATIONS AS SET FORTH IN THE MARCH 4TH CCRC REPORT. AS TO PETITIONER'S REQUEST FOR THE

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MINOR TO OBTAIN A PASSPORT, THE COURT HAS ORDERED JOINT LEGAL CUSTODY. AS SUCH, THE PARTIES MUST BOTH SIGN THE APPLICATION FOR THE PASSPORT. THE COURT IS DIRECTING THE PARTIES TO WORK COOPERATIVELY TO OBTAIN A PASSPORT FOR THE MINOR.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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19. RUBEN WILBURN V. HEATHER VOGEL

24FL0197

Petitioner filed a Request for Order (RFO) on August 18, 2025, seeking a modification of the current parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on September 18, 2025, and a review hearing on November 6, 2025. Respondent was personally served on August 25, 2025.

Both parties appeared at CCRC and reached a full agreement. The parties submitted a stipulation to the court on September 24, 2025. The court signed and adopted the parties' stipulation as its order on September 24th. The stipulation set a further review hearing for March 26, 2026, at 1:30 PM in Department 5.

Neither party has filed a Supplemental Declaration. The court finds the prior orders continue to be in the best interest of the minor. All prior orders remain in effect. The matter is dropped from calendar.

TENTATIVE RULING #19: ALL PRIOR ORDERS REMAIN IN EFFECT. AS NEITHER PARTY FILED A SUPPLEMENTAL DECLARATION, THE MATTER IS DROPPED FROM CALENDAR.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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20. ANGELA WILLIAMS V. JOSEPH IBARRA

PFL20150187

Petitioner filed a Request for Order (RFO) on December 29, 2025, seeking modification of the child custody and parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 26, 2026, and a review hearing on March 26, 2026. Proof of Service shows Respondent was personally served on January 1, 2026.

Petitioner filed an ex parte application for emergency custody orders on January 6, 2026. The court denied the request on January 7, 2026 and confirmed the previously set CCRC appointment and review hearing.

Both parties attended CCRC and were unable to reach any agreements. A report with recommendations was filed with the court on March 9, 2026. Copies were mailed to the parties on March 10th.

Respondent has not filed a Responsive Declaration.

The court has read and considered the filings as outlined above. The court finds the recommendations set forth in the CCRC report to be in the best interest of the minor, except for the parenting plan. The court finds a week on/week off schedule to be in the best interest of the minor, as it will limit the number of exchanges required. The court is ordering a week on/week off schedule to begin on Monday March 30th with Respondent to drop the minor off at school. Petitioner will then have parenting time until Monday April 6th drop off at school, which will begin Respondent's parenting time. The schedule will continue to rotate with the exchanges to occur on Mondays. The court adopts the exchange location as set forth in the report for non-school day exchanges. The court adopts the remaining recommendations as set forth in the March 9th CCRC report.

All prior orders not in conflict with this order remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #20: THE COURT FINDS THE RECOMMENDATIONS SET FORTH IN THE CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR, EXCEPT FOR THE PARENTING PLAN. THE COURT FINDS A WEEK ON/WEEK OFF SCHEDULE TO BE IN THE BEST INTEREST OF THE MINOR, AS IT WILL LIMIT THE NUMBER OF EXCHANGES REQUIRED. THE COURT IS ORDERING A WEEK ON/WEEK OFF SCHEDULE TO BEGIN ON

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8:30 a.m./1:30 p.m.

MONDAY MARCH 30TH WITH RESPONDENT TO DROP THE MINOR OFF AT SCHOOL. PETITIONER WILL THEN HAVE PARENTING TIME UNTIL MONDAY APRIL 6TH DROP OFF AT SCHOOL, WHICH WILL BEGIN RESPONDENT'S PARENTING TIME. THE SCHEDULE WILL CONTINUE TO ROTATE WITH THE EXCHANGES TO OCCUR ON MONDAYS. THE COURT ADOPTS THE EXCHANGE LOCATION AS SET FORTH IN THE REPORT FOR NON-SCHOOL DAY EXCHANGES. THE COURT ADOPTS THE REMAINING RECOMMENDATIONS AS SET FORTH IN THE MARCH 9TH CCRC REPORT. ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH), HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.